

25NWLC71998 25NWLC71998

County: los-angeles

Division: Civil Law and Motion

Department: Y

Hearing date: 2026-06-29

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Case Number: 25NWLC71998 Hearing Date: June 29, 2026 Dept: Y

25NWLC71998: VELOCITY INVESTMENTS LLC vs MATTHEW KIM

Tentative Ruling:

The Court has read and reviewed the moving papers filed by Defendant Matthew Jinhyun Kim ("Defendant"), including the supporting declaration. The Court has also reviewed all relevant court records. No opposition has been filed by Plaintiff Velocity Investments LLC ("Plaintiff").

The Court notes that default was entered by the Clerk on March 24, 2026. Although Plaintiff has requested default judgment, no default judgment has been entered by the Court.

Defendant states in his declaration, which was submitted under penalty of perjury, that he became aware of this lawsuit in April 2026 when he was reviewing his credit report. Defendant's Motion was promptly filed on May 22, 2026.

The Court notes that Proof of Service of Summons by a registered process server by personal service was filed with the Court on December 26, 2025 creating a presumption of service under Evidence Code section 647. Defendant's declaration, which was signed under penalty of perjury, states that he was not personally served with the Summons and Complaint. Defendant also states that the physical description of the person served does not match his physical description (e.g. he is of East Asian descent (Korean) and not Middle Eastern as noted in the Proof of Service). He believes that the description matches a neighbor, but not anyone that resides at his home.

Here, the Court finds that Defendant has rebutted the presumption of service and finds that there was no actual notice. "Actual notice," within the meaning of Code of Civil Procedure section 473.5, means genuine knowledge by the defendant, and has been strictly construed. Relief under the statute is liberally granted to defendants so that cases may be resolved on their merits. *Ellard v. Conway* (2001) 94 Cal.App.4th 540, 547-548.

Pursuant to Code of Civil Procedure section 437.5, the Court GRANTS Defendant's Motion and vacates and sets aside the Default.

The Court grants Defendant 20 days leave to file a responsive pleading.

Clerk to give notice.